

IN THE SENATE

SENATE BILL NO. 1395

BY JUDICIARY AND RULES COMMITTEE

AN ACT

RELATING TO CHILD CUSTODY; PROVIDING LEGISLATIVE FINDINGS AND INTENT;
AMENDING SECTION 32-717, IDAHO CODE, TO REVISE PROVISIONS REGARDING
CHILD CUSTODY; AMENDING SECTION 32-717B, IDAHO CODE, TO PROVIDE FOR A
PRESUMPTION OF EQUAL CUSTODY ALLOCATION; AMENDING CHAPTER 7, TITLE 32,
IDAHO CODE, BY THE ADDITION OF A NEW SECTION 32-721, IDAHO CODE, TO DE-
FINE TERMS; AMENDING SECTION 32-1705, IDAHO CODE, TO PROVIDE A CORRECT
CODE REFERENCE; AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. LEGISLATIVE FINDINGS AND INTENT. (1) The Legislature finds
that:

(a) Parenthood is a natural and fundamental relationship from which
inherent parental rights and responsibilities arise, protected by the
United States Constitution and the Constitution of the State of Idaho;

(b) A parent has the right, obligation, responsibility, and authority
to raise, manage, train, educate, provide for, and reasonably disci-
pline the parent's child;

(c) The role of the state is secondary and supportive to the primary
role of a parent;

(d) A parent's fundamental rights may be restricted only upon a judi-
cial finding of unfitness or necessity, supported by clear and convinc-
ing evidence; and

(e) The interests of the state favor preservation and not severance of
natural familial bonds in circumstances where a positive, nurturing
parent-child relationship can exist, including extended family associ-
ation and support. The procedural safeguards contained in this act are
essential to the best interests of the child.

(2) The Legislature declares that family court proceedings affecting
the custody, care, or visitation of a child implicate fundamental liberty
interests.

(3) It is the intent of the Legislature to:

(a) Protect children by preserving stable relationships with fit par-
ents;

(b) Ensure that restrictions on parental rights are narrowly tailored,
based on clear and convincing evidence, and are the least restrictive
means available;

(c) Promote transparency, accountability, and timely judicial action
in all custody matters; and

(d) Promote stability, reduce unnecessary litigation, and support
the child's meaningful relationship with fit parents by establishing
clear, uniform standards for custody determinations.

SECTION 2. That Section 32-717, Idaho Code, be, and the same is hereby amended to read as follows:

32-717. CUSTODY OF CHILDREN -- BEST INTEREST. (1) ~~In an action for divorce~~ When parents cannot reach an agreement regarding custody or parenting time of a minor child, the court may, before and after judgment, give such direction for the custody, care and education of the children ~~of the marriage~~ as may seem necessary or proper in the best interests of the children. The court shall consider all relevant factors which may include:

- (a) The wishes of the child's parent or parents as to his or her custody;
- (b) The wishes of the child as to his or her custodian;
- (c) The interaction and interrelationship of the child with his or her parent or parents, and his or her siblings;
- (d) The child's adjustment to his or her home, school, and community;
- (e) The character and circumstances of all individuals involved;
- (f) The need to promote continuity and stability in the life of the child; and
- (g) Domestic violence as defined in section 39-6303, Idaho Code, whether or not in the presence of the child.

(2) If the parent has a disability as defined in ~~this section~~ 32-721, Idaho Code, the parent shall have the right to provide evidence and information regarding the manner in which the use of adaptive equipment or supportive services will enable the parent to carry out the responsibilities of parenting the child. The court shall advise the parent of such right. Evaluations of parental fitness shall take into account the use of adaptive equipment and supportive services for parents with disabilities and shall be conducted by, or with the assistance of, a person who has expertise concerning such equipment and services. Nothing in this section shall be construed to create any new or additional obligations on state or local governments to purchase or provide adaptive equipment or supportive services for parents with disabilities.

(3) In any case where the child is ~~actually~~ residing with a grandparent in a stable relationship, the court may recognize the grandparent as having the same standing as a parent for ~~evaluating what custody arrangements are in the best interests of the child.~~ purposes of presenting evidence regarding the child's best interests, but not for purposes of diminishing, supplanting, or rebutting the fundamental parental rights. Nothing in this subsection shall create a presumption in favor of a de facto custodian over a fit parent.

~~(4) As used in this chapter:~~

~~(a) "Adaptive equipment" means any piece of equipment or any item that is used to increase, maintain or improve the parenting capabilities of a parent with a disability.~~

~~(b) "Disability" means, with respect to an individual, any mental or physical impairment which substantially limits one (1) or more major life activities of the individual including, but not limited to, self-care, manual tasks, walking, seeing, hearing, speaking, learning or working, or a record of such an impairment, or being regarded as having such an impairment. Disability shall not include transvestism, transsexualism, pedophilia, exhibitionism, voyeurism, other sexual~~

behavior disorders, substance use disorders, compulsive gambling, kleptomania or pyromania. Sexual preference or orientation is not considered an impairment or disability. Whether an impairment substantially limits a major life activity shall be determined without consideration of the effect of corrective or mitigating measures used to reduce the effects of the impairment.

(c) "Supportive services" means services which assist a parent with a disability to compensate for those aspects of their disability which affect their ability to care for their child and which will enable them to discharge their parental responsibilities. The term includes specialized or adapted training, evaluations, or assistance with effective use of adaptive equipment, and accommodations which allow a parent with a disability to benefit from other services, such as braille texts or sign language interpreters.

(5) (4) Nothing in this chapter shall be construed to allow discrimination on the basis of disability. In any case where the disability of a parent is found by the court to be relevant to an award of custody of a child, the court shall make specific findings concerning the disability and what effect, if any, the court finds the disability has on the best interests of the child.

(6) (5) With reference to this section, when an active member of the Idaho national guard has been ordered or called to duty as defined in section 46-409, Idaho Code, or when a member of the military reserve is ordered to active federal service under title 10, United States Code, such military service thereunder shall not be a substantial or material and permanent change in circumstance to modify by reducing the member's previously decreed child custody and visitation privileges.

(6) Prior to any contested divorce or custody proceeding being set for trial, the court shall require the parties to participate in alternative dispute resolution, including but not limited to mediation or a judicial settlement conference, absent good cause.

SECTION 3. That Section 32-717B, Idaho Code, be, and the same is hereby amended to read as follows:

32-717B. JOINT PRESUMPTION IN FAVOR OF EQUAL CUSTODY ALLOCATION. (1) "Joint custody" means an order awarding custody of the minor child or children to both parents and providing that physical custody shall be shared by the parents in such a way as to assure the child or children of frequent and continuing contact with both parents. The court may award either joint physical custody or joint legal custody or both as between the parents or parties as the court determines is for the best interests of the minor child or children. If the court declines to enter an order awarding joint custody, the court shall state in its decision the reasons for denial of an award of joint custody.

(2) "Joint physical custody" means an order awarding each of the parents significant periods of time in which a child resides with or is under the care and supervision of each of the parents or parties.

Joint physical custody shall be shared by the parents in such a way to assure the child a frequent and continuing contact with both parents but does not necessarily mean the child's time with each parent should be exactly the

1 same in length nor does it necessarily mean the child should be alternating
2 back and forth over certain periods of time between each parent.

3 The actual amount of time with each parent shall be determined by the
4 court.

5 ~~(3) "Joint legal custody" means a judicial determination that the par-~~
6 ~~ents or parties are required to share the decision-making rights, responsi-~~
7 ~~bilities and authority relating to the health, education and general welfare~~
8 ~~of a child or children.~~

9 ~~(4) (1) Except as provided in subsection (5), (2) of this section, ab-~~
10 ~~sent a preponderance of the evidence showing of good cause by clear and con-~~
11 ~~vincing evidence to the contrary, there shall be a presumption that joint~~
12 ~~custody substantially equal parenting time and joint legal custody is in the~~
13 ~~best interests of a minor child or children. If the court declines to enter~~
14 ~~an order awarding substantially equal parenting time and joint legal cus-~~
15 ~~tody, the court shall state in its decision the reasons for denial of an award~~
16 ~~of substantially equal parenting time and joint legal custody.~~

17 ~~(5) (2) There shall be a presumption that joint custody substantially~~
18 ~~equal parenting time and joint legal custody is not in the best interests of~~
19 ~~a minor child if one (1) of the parents is found by the court to be a habitual~~
20 ~~perpetrator of domestic violence as defined in section 39-6303, Idaho Code.~~

21 SECTION 4. That Chapter 7, Title 32, Idaho Code, be, and the same is
22 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
23 ignated as Section 32-721, Idaho Code, and to read as follows:

24 32-721. DEFINITIONS. For the purpose of this chapter:

25 (1) "Adaptive equipment" means equipment used to enhance the parenting
26 capabilities of a parent with a disability.

27 (2) "Custodial parent" means a parent awarded more than substantially
28 equal physical custody of the parent's child, or, if no order exists, the
29 parent providing the child's principal residence more than fifty-five per-
30 cent (55%) of the time.

31 (3) "Custodian" means a parent or other adult recognized by the court
32 as having standing to exercise care, supervision, or custody of a child, in-
33 cluding grandparents in stable, ongoing caregiving arrangements.

34 (4) "Custody" means responsibility for a child, including legal, phys-
35 ical, joint, or sole custody.

36 (5) "Disability" means a mental or physical impairment substantially
37 limiting a major life activity. "Disability" does not include sexual orien-
38 tation, sexual behavior disorders, substance use disorders, compulsive gam-
39 bling, kleptomania, or pyromania.

40 (6) "Joint legal custody" means equally shared decision-making rights,
41 responsibilities, and authority relating to the health, education, and gen-
42 eral welfare of a child, unless otherwise specified in a court order.

43 (7) "Joint physical custody" means equal periods of residence or su-
44 pervision, except for temporary deviations for events such as documented
45 travel, military deployment, temporary relocation, or medical conditions.

46 (8) "Legal custody" means the right and responsibility to make major
47 decisions regarding the child's upbringing, including health, education,
48 and welfare.

1 (9) "Non-custodial parent" means a parent with less than forty-five
2 percent (45%) physical custody of the parent's child.

3 (10) "Parent" means a biological or adoptive mother or father whose
4 parental rights are not terminated. "Parent" does not include persons
5 serving in loco parentis, de facto caregivers, temporary guardians, or
6 court-ordered visitation-only persons.

7 (11) "Parental fitness" means the ability to provide for the child's
8 health, safety, education, and welfare, including consistent parenting.

9 (12) "Parenting time" means periods of time during which a parent exer-
10 cises care of and interaction with the child. Parenting time reflects inher-
11 ent parental rights and may be structured by court order.

12 (13) "Physical custody" means the legal allocation of day-to-day care
13 of the child.

14 (14) "Sole legal custody" means the exclusive authority to make major
15 decisions regarding the child's upbringing, including health, education,
16 and welfare.

17 (15) "Sole physical custody" means the exclusive right and responsibil-
18 ity for primary residence and daily care of the child, subject to parenting
19 time rights of the other parent.

20 (16) "State" includes the legislative, executive, and judicial
21 branches of government.

22 (17) "Substantially equal parenting time" means both parents have equal
23 legal custody and nearly equal physical custody of the child, with each par-
24 ent having physical custody of the child at least forty-five percent (45%) of
25 the time.

26 (18) "Supportive services" means services that aid a parent with a dis-
27 ability in fulfilling parental responsibilities.

28 SECTION 5. That Section 32-1705, Idaho Code, be, and the same is hereby
29 amended to read as follows:

30 32-1705. NATURE OF DE FACTO CUSTODIAN ORDER -- ACCESS TO RECORDS --
31 TERMINATION OF DE FACTO CUSTODIANSHIP. (1) A court may enter an order grant-
32 ing a de facto custodian sole or joint legal and/or physical custody as
33 defined in section ~~32-717B(1), (2) and (3)~~ 32-721, Idaho Code, in the same
34 manner as it would grant such custody to a parent.

35 (2) An order granting custody to a de facto custodian is subject to the
36 continuing jurisdiction of the court and is modifiable in the same manner
37 as an order establishing parental custody pursuant to section 32-717, Idaho
38 Code, or a similar provision.

39 (3) A de facto custodian who has been granted sole or joint legal cus-
40 tody of a child shall have access to records pertaining to the child who is
41 the subject of the de facto custodianship to the same extent as a parent would
42 have such access pursuant to an order of legal custody.

43 (4) Any party to the proceeding granting custody to a de facto custodian
44 may move for the termination of the custody order. A de facto custodian may
45 move for permission to resign as de facto custodian.

46 (a) A party moving for termination of the de facto custodian-child re-
47 lationship must show by a preponderance of the evidence that termina-
48 tion of the relationship would be in the best interests of the child.

1 (b) A motion for termination or for resignation may, but need not, in-
2 clude a proposal for the continuing custody of the child.

3 (c) After notice and hearing on a motion for termination or resigna-
4 tion, the court may terminate the custody of the de facto custodian and
5 may make any further orders that may be appropriate in the best inter-
6 ests of the child.

7 SECTION 6. This act shall be in full force and effect on and after Jan-
8 uary 1, 2027.